

Per Curiam

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SUPREME COURT OF THE UNITED STATES

Nos. 24–656 and 24–657

TIKTOK INC., ET AL., PETITIONERS
24–656 *v.*
MERRICK B. GARLAND, ATTORNEY GENERAL

BRIAN FIREBAUGH, ET AL., PETITIONERS
24–657 *v.*
MERRICK B. GARLAND, ATTORNEY GENERAL

ON APPLICATIONS FOR INJUNCTION PENDING REVIEW TO THE
UNITED STATES COURT OF APPEALS FOR THE DISTRICT OF
COLUMBIA CIRCUIT

[January 17, 2025]

PER CURIAM.

As of January 19, the Protecting Americans from Foreign Adversary Controlled Applications Act will make it unlawful for companies in the United States to provide services to distribute, maintain, or update the social media platform TikTok, unless U. S. operation of the platform is severed from Chinese control. Petitioners are two TikTok operating entities and a group of U. S. TikTok users. We consider whether the Act, as applied to petitioners, violates the First Amendment.

In doing so, we are conscious that the cases before us involve new technologies with transformative capabilities. This challenging new context counsels caution on our part. As Justice Frankfurter advised 80 years ago in considering the application of established legal rules to the “totally new problems” raised by the airplane and radio, we should take

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erations of the [application] and any formerly affiliated entities that are controlled by a foreign adversary, including any cooperation with respect to the operation of a content recommendation algorithm or an agreement with respect to data sharing.” §2(g)(6)(B). The Act permits the President to grant a one-time extension of no more than 90 days with respect to the prohibitions’ 270-day effective date if the President makes certain certifications to Congress regarding progress toward a qualified divestiture. §2(a)(3).

C

ByteDance Ltd. and TikTok Inc.—along with two sets of TikTok users and creators (creator petitioners)—filed petitions for review in the D. C. Circuit, challenging the constitutionality of the Act. As relevant here, the petitioners argued that the Act’s prohibitions, TikTok-specific foreign adversary controlled application designation, and divestiture requirement violate the First Amendment.

The D. C. Circuit consolidated and denied the petitions, holding that the Act does not violate petitioners’ First Amendment rights. 122 F. 4th 930, 940, 948–965 (CA DC 2024). After first concluding that the Act was subject to heightened scrutiny under the First Amendment, the court assumed without deciding that strict, rather than intermediate, scrutiny applied. *Id.*, at 948–952. The court held that the Act satisfied that standard, finding that the Government’s national security justifications—countering China’s data collection and covert content manipulation efforts—were compelling, and that the Act was narrowly tailored to further those interests. *Id.*, at 952–965.

Chief Judge Srinivasan concurred in part and in the judgment. *Id.*, at 970. In his view, the Act was subject to intermediate scrutiny, *id.*, at 974–979, and was constitutional under that standard, *id.*, at 979–983.

We granted certiorari to decide whether the Act, as applied to petitioners, violates the First Amendment. 604

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because it excludes from the definition of “covered company” any company that operates an application “whose primary purpose is to allow users to post product reviews, business reviews, or travel information and reviews.” §2(g)(2)(B); see Brief for Petitioners in No. 24–656, pp. 26–27 (Brief for TikTok); Brief for Petitioners in No. 24–657, p. 26 (Brief for Creator Petitioners). We need not decide whether that exclusion is content based. The question before the Court is whether the Act violates the First Amendment *as applied to petitioners*. To answer that question, we look to the provisions of the Act that give rise to the effective TikTok ban that petitioners argue burdens their First Amendment rights. The exclusion for certain review platforms, however, applies only to the general framework for designating applications controlled by “covered company[ies],” not to the TikTok-specific designation. §§2(g)(3)(A)–(B). As such, the exclusion is not within the scope of petitioners’ as-applied challenge.

b

The Government also supports the challenged provisions with a content-neutral justification: preventing China from collecting vast amounts of sensitive data from 170 million U. S. TikTok users. 2 App. 628. That rationale is decidedly content agnostic. It neither references the content of speech on TikTok nor reflects disagreement with the message such speech conveys. Cf. *Ward*, 491 U. S., at 792–793 (holding noise control and sound quality justifications behind city sound amplification guideline were content neutral).

Because the data collection justification reflects a “purpose unrelated to the content of expression,” it is content neutral. *Id.*, at 791.

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The Act’s TikTok-specific distinctions, moreover, do not trigger strict scrutiny. See Brief for TikTok 26–27; Brief for

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As applied to petitioners, the Act is sufficiently tailored to address the Government’s interest in preventing a foreign adversary from collecting vast swaths of sensitive data about the 170 million U. S. persons who use TikTok. To survive intermediate scrutiny, “a regulation need not be the least speech-restrictive means of advancing the Government’s interests.” *Turner I*, 512 U. S., at 662. Rather, the standard “is satisfied ‘so long as the regulation promotes a substantial government interest that would be achieved less effectively absent the regulation’” and does not “burden substantially more speech than is necessary” to further that interest. *Ward*, 491 U. S., at 799 (quoting *United States v. Albertini*, 472 U. S. 675, 689 (1985); alteration omitted).

The challenged provisions meet this standard. The provisions clearly serve the Government’s data collection interest “in a direct and effective way.” *Ward*, 491 U. S., at 800. The prohibitions account for the fact that, absent a qualified divestiture, TikTok’s very operation in the United States implicates the Government’s data collection concerns, while the requirements that make a divestiture “qualified” ensure that those concerns are addressed before TikTok resumes U. S. operations. Neither the prohibitions nor the divestiture requirement, moreover, is “substantially broader than necessary to achieve” this national security objective. *Ibid.* Rather than ban TikTok outright, the Act imposes a conditional ban. The prohibitions prevent China from gathering data from U. S. TikTok users unless and until a qualified divestiture severs China’s control.

Petitioners parade a series of alternatives—disclosure requirements, data sharing restrictions, the proposed national security agreement, the general designation provision—that they assert would address the Government’s data collection interest in equal measure to a conditional TikTok ban. Those alternatives do not alter our tailoring analysis.

Opinion of SOTOMAYOR, J.

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JUSTICE SOTOMAYOR, concurring in part and concurring
in the judgment.

I join all but Part II.A of the Court’s *per curiam* opinion.
I see no reason to assume without deciding that the Act im-
plicates the First Amendment because our precedent leaves
no doubt that it does.

TikTok engages in expressive activity by “compiling and
curating” material on its platform. *Moody v. NetChoice, LLC*, 603 U. S. 707, 731 (2024). Laws that “impose a dis-
proportionate burden” upon those engaged in expressive ac-
tivity are subject to heightened scrutiny under the First
Amendment. *Arcara v. Cloud Books, Inc.*, 478 U. S. 697,
704 (1986); see *Minneapolis Star & Tribune Co. v. Minne-
sota Comm’r of Revenue*, 460 U. S. 575, 581–585 (1983).
The challenged Act plainly imposes such a burden: It bars
any entity from distributing TikTok’s speech in the United
States, unless TikTok undergoes a qualified divestiture.
The Act, moreover, effectively prohibits TikTok from collab-